

TENTATIVE RULING(S) FOR AUGUST 5, 2026

Department S37 – Judge Winston Keh

This court follows California Rules of Court, rule 3.1308(b) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings for each law & motion will be posted on the internet (<https://www.sb-court.org>) by 3:00 p.m. on the court day immediately before the hearing.

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If you (or both parties) wish to submit on the Tentative, notify the other party and call the department by 4:00 pm the day before and your appearance may be excused unless the Court orders you to appear.

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UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

CIVSB2505697

Acosta v. Ford

TENTATIVE RULING(S):

Before the Court is Plaintiffs' Motion for Attorney's Fees, Costs and Expenses. Plaintiffs moved to recover \$9,428 in attorney fees, a 1.3 lodestar multiplier in the amount of \$2,828.40, and \$2,033.39 in costs and expenses, for a total request of \$14,289.79. (Kirnos Decl. ¶ 2.)

Ford opposes and requests that the Court award no more than \$4,582.80 in attorney fees and deny Plaintiffs' request for costs and a multiplier.

Plaintiffs responded that Ford has not established that the requested hourly rates or hours are unreasonable. Plaintiffs also reduce the lodestar by \$172.50 because counsel spent two hours, rather than the anticipated 2.3 hours, reviewing Ford's opposition and preparing the reply and supporting declaration.

Plaintiffs therefore seek a revised lodestar of \$9,255.50, plus a multiplier and \$2,033.39 in costs and expenses. (Swanson Decl. ¶ 4; Reply 10:12-13.)

Reasonable Hourly Rate

A reasonable hourly rate is one that is prevailing in the community where the case is litigated for similar work. (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095; *Tidrick v. FCA US LLC* (2025) 112 Cal.App.5th 1147, 1157 (*Tidrick*).)

Plaintiffs seek the following hourly rates for the attorneys who worked on this case: Lauren Ungs and Chris Swanson at \$575 per hour; Russell Higgins at \$600 per hour; Jeffery Mukai at \$550 per hour; Armando Lopez at \$450 per hour; Colby Meagle at \$400 per hour; and Caitlin Rice at \$375 per hour. Plaintiffs also seek \$145 per hour for paralegals Imelda Oleden and Patricia Cortazar. (Kirnos Decl. ¶ 28(a)-(i), Exh. A.)

In support of the requested rates, Kirnos describes the attorneys' education, years of practice, litigation experience, and experience prosecuting consumer-protection and Song-Beverly matters. (Kirnos Decl. ¶¶ 23-28.) Plaintiffs also submit orders from other Song-Beverly matters approving comparable rates, including 2025 San Bernardino County orders approving rates up to \$550 per hour and orders from surrounding counties approving rates up to \$575 and \$595 per hour. (Kirnos Decl. ¶ 30, Exhs. W-FF.)

Ford argues that the rates should be reduced to \$350 per hour for partners and \$275 per hour for associates. Ford relies primarily on federal district court decisions involving work performed several years earlier and selected portions of a 2022 Real Rate Report. (Ross Decl. ¶ 3, Exh. B.)

Ford also argues that the requested rates are artificial because Plaintiffs retained counsel on a contingency basis and did not agree to pay those rates directly. That circumstance does not determine the reasonable hourly rate. The lodestar is based on the prevailing market rate for comparable legal services, rather than the amount the prevailing party was contractually obligated to pay counsel. (*PLCM, supra*, 22 Cal.4th at p. 1095; *Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1133.)

Ford's evidence does not establish that its proposed rates reflect the prevailing rates for contingent Song-Beverly litigation in San Bernardino County in 2025 and 2026. The Real Rate Report is based on 2022 data, does not contain a category for Song-Beverly litigation, and does not provide rates specific to San Bernardino County. The report also contains materially different figures depending on the selected

category. It lists national median rates for consumer-goods litigation of \$366 for partners and \$281 for associates, and national median rates for consumer-services litigation of \$605 for partners and \$440 for associates. Its Los Angeles general-liability table lists median rates of \$835 for partners and \$475 for associates. Ford's citation to page 85 for general-liability rates is mistaken because page 85 concerns bankruptcy and collections. Although Ford also cites lower insurance-defense rates, those negotiated institutional-defense rates do not establish the market rate for contingent consumer representation. Given the report's age, geography, and varying practice-area categories, it does not establish that all partner rates should be reduced to \$350 or all associate rates to \$275. (Ross Decl. ¶ 3, Exh. B, pp. 64, 85, 136, 144, 178.)

Ford correctly observes that this was not an unusually complex case and that the firm used templates and divided work among several attorneys. Those considerations may bear on the reasonable time required for particular tasks, but they do not establish that the requested hourly rates are unreasonable. The use of templates generally promotes efficiency, and the relevant question remains the prevailing market value of the services rendered.

The requested rates are at the higher end of the range, particularly Higgins's \$600 rate. Nevertheless, Plaintiffs provide evidence of counsel's substantial experience and recent orders approving comparable rates in Song-Beverly cases, including cases litigated in San Bernardino County. Ford's generalized rate evidence does not justify reducing all partners to \$350 and associates to \$275.

Accordingly, the Court does not agree with Ford's requested across the board rate reduction.

Reasonable Hours

The starting point for every fee award is calculating an attorney's services in terms of time expended on the case. (*Levy v. Toyota Motor Sales, U.S.A., Inc.* (1992) 4 Cal.App.4th 807, 814-815.)

Plaintiffs initially sought compensation for 25.5 hours. In reply, Plaintiffs reduced the requested time by 0.3 hour because Swanson spent two hours, rather than the anticipated 2.3 hours, reviewing Ford's opposition and preparing the reply. Plaintiffs therefore seek compensation for 25.2 hours and a revised lodestar of \$9,255.50. (Swanson Decl. ¶ 4; Reply 8:17-21.)

Ford argues the hours should be reduced because Plaintiffs used nine timekeepers in a routine case, billed for internal communications and administrative work, block billed certain tasks, included time

after Ford served the section 998 offer, and requested excessive time for the fee motion. Ford identifies the challenged entries in the exhibits to the Ross declaration. (Ross Decl. ¶ 4, Exhs. C-D.)

1. Number of Timekeepers

The use of nine timekeepers does not, by itself, establish that the billing was excessive. Most of the attorneys performed discrete tasks, and the total time sought for the entire case is only 25.2 hours. The billing records do not show multiple attorneys appearing at the same hearing or deposition, repeated review of the same work by several attorneys, or substantial time devoted to bringing new attorneys up to speed.

Ford identifies seven timekeepers who worked on its behalf, and Ross's declaration establishes that she also worked on the case, bringing the identifiable number of defense attorneys and other personnel to at least eight. (Kirnos Decl. ¶ 31; Ross Decl. ¶ 1.) Although Ford's staffing does not determine the reasonableness of Plaintiffs' staffing, it undermines Ford's contention that the number of Plaintiffs' timekeepers is inherently unreasonable.

Accordingly, the Court is not inclined to a reduction merely because nine timekeepers appear in the billing records.

2. June 3, 2025 Block-Billed Entry

Ford challenges Oleden's 0.3-hour entry for reviewing the file, communicating with the client, and emailing the responsible attorneys. Ford requests a 20 percent reduction because the entry combines several tasks.

Block billing is not per se prohibited, but it may support a reduction when it obscures the nature of the work performed or prevents the Court from assessing whether the time was reasonably incurred. (*Christian Research Institute v. Alnor* (2008) 165 Cal.App.4th 1315, 1325–1326.)

Here, the tasks were related, the total time was minimal, and the entry permits meaningful review. The record does not show that 0.3 hour was unreasonable.

3. June 23, 2025 Hearing Memorandum

Mukai billed 0.2 hour to prepare a memorandum concerning the outcome of Ford's ex parte application. Ford characterizes the entry as non-compensable internal communication.

Preparing a short memorandum to preserve the result of a contested hearing is reasonably related to case management and the prosecution of the action. Only Mukai billed for the task, and the 0.2 hour requested is modest.

4. June 26, 2025 Translation

Oliden billed 0.1 hour to translate responses to the initial-disclosure questionnaire. Ford argues translation is a ministerial or production task. The translation facilitated preparation of Plaintiffs' disclosures and was billed at the paralegal rate rather than an attorney rate. Given the nature of the task and the minimal time requested, the entry is reasonably connected to the prosecution of the action.

5. July 10, 2025 Calendaring and Database Entry

Support services, including expenses related to secretaries and paralegals, are includable in an award for attorneys' fees. (*City of Oakland v. McCullough* (1996) 46 Cal.App.4th 1, 7.) But these charges are distinguishable from purely clerical work, which is not recoverable. (*See Zargarian v. BMW of N. Am., LLC* (C.D. Cal. 2020) 442 F.Supp.3d 1216, 1229 ["It is well established that a plaintiff may not recover fees for time spent on purely clerical work"].)

Cortazar billed 0.1 hour, at her paralegal rate of \$145 per hour to calendar the mediation and update Salesforce, resulting in a \$14.50 charge. Calendaring an event and updating the firm's internal case-management database are clerical or administrative tasks, rather than compensable paralegal services involving legal skill or substantive litigation support. Therefore, the Court excludes the entire entry and reduces the requested fees by \$14.50.

6. August 4, 2025 Deposition Exhibits

Rice billed 0.3 hour, at her attorney rate of \$375 per hour to organize and prepare Ford's PMQ exhibits for transmission to the court reporter, resulting in a \$112.50 charge. Although the exhibits were used in connection with a compensable deposition, organizing and transmitting exhibits is clerical work rather than attorney-level legal work. Therefore, the Court excludes the entire entry and reduces the requested fees by \$112.50.

7. August 22, 2025 Deposition Notes

Rice billed 0.3 hour to draft and save attorney notes concerning the Ford PMQ deposition. Ford characterizes the entry as internal communication or administrative work. The entry reflects preparation

and preservation of substantive attorney notes regarding deposition testimony. It does not merely concern saving or transmitting documents. The work was reasonably related to counsel's evaluation and use of the deposition evidence.

8. October 2, 2025 Settlement Communication

Higgins billed 0.1 hour to confer with staff regarding the clients' response to a mediation proposal, resulting in a \$120 charge. Ford argues the entry should be eliminated as an internal communication. The entry concerns obtaining or communicating the clients' response to a settlement proposal. Only Higgins billed for the communication, and there is no corresponding charge by the staff member. Reasonable internal communications necessary to settlement are compensable.

9. October 22, 2025 Review and Acceptance of Section 998 Offer

Higgins billed 0.2 hour, at his requested rate of \$600 per hour to review and execute Ford's section 998 offer on October 22, 2025. Ford argues the entry should be excluded because it was incurred after the October 20, 2025 fee cutoff.

Plaintiffs rely on *Covert v. FCA USA, LLC* (2022) 73 Cal.App.5th 821, 838, which rejected the general proposition that post offer fees are categorically unrecoverable under Civil Code section 1794, subdivision (d). But the accepted offer here expressly provides that fees are to be calculated as though Plaintiffs prevailed "as of the date of this offer of judgment," October 20, 2025, while separately permitting recovery of fees reasonably incurred in bringing the fee motion. (Ross Decl. ¶ 2, Exh. A, ¶ 2.)

Because the October 22 entry was incurred after the agreed merits-fee cutoff and did not concern preparation or prosecution of the fee motion, the Court excludes the full \$120 charge.

10. Fee Motion

Ford challenges all time associated with the fee motion. Plaintiffs initially sought 4.1 hours, consisting of 0.8 hour for preparing the moving papers, 2.3 anticipated hours for reviewing the opposition and preparing the reply, and one anticipated hour for the hearing.

In reply, Swanson states he spent a combined two hours reviewing Ford's opposition and supporting declaration, cross-referencing the disputed entries, and preparing the reply and supporting declaration. Plaintiffs accordingly reduced the request by 0.3 hour, or \$172.50. (Swanson Decl. ¶ 4.)

Ford's section 998 offer expressly permits Plaintiffs to recover fees and costs reasonably incurred in bringing the fee motion. (Ross Decl. ¶ 2, Exh. A, ¶ 2.)

The revised request is modest. Counsel billed only 0.8 hour for the moving papers and two hours for reviewing Ford's detailed opposition, analyzing the challenged billing entries, and preparing the reply and declaration. One anticipated hour for preparation and appearance at the hearing is also reasonable. Although the moving and reply papers rely in part on arguments used in other Song-Beverly cases, counsel was still required to review this file, calculate the case-specific lodestar, address Ford's entry-specific objections, and respond to Ford's rate evidence.

The Court is not inclined to further reduce the fee-motion work.

Lodestar Multiplier

Plaintiffs request a 1.3 multiplier based on the contingent nature of the representation, the risk of nonpayment, and the delay in receiving payment. (Kirnos Decl. ¶¶ 3, 8.)

A fee enhancement may compensate counsel for contingent risk and delay. (*Ketchum*, *supra*, 24 Cal.4th at p. 1138.) The enhancement is not automatic, however, and must be supported by circumstances specific to the case.

This matter did not involve unusually novel or difficult legal issues. The action was pending for approximately eight months before the section 998 offer, involved no dispositive motion, expert discovery, or trial, and involves a request for only 25.2 hours. Although Ford filed an ex parte application and a motion for protective order concerning initial disclosures, the protective-order motion was withdrawn. Plaintiffs took one PMQ deposition and participated in mediation before accepting Ford's offer.

The requested hourly rates already reflect counsel's experience and specialization in Song-Beverly litigation. Contingency risk and delay are separate permissible considerations, but Plaintiffs rely principally on generalized circumstances common to Knight Law Group's Song-Beverly practice. They do not establish that this particular case presented unusual contingent risk, substantially precluded counsel from accepting other employment, or involved an extraordinary delay in payment. The favorable result is adequately reflected in the reasonable lodestar. Accordingly, the Court denies the requested multiplier.

Costs and Expenses

Plaintiffs seek \$2,033.39 in costs and expenses. Plaintiffs filed a verified Memorandum of Costs and worksheet on January 28, 2026. The worksheet identifies the complaint and fee-motion filing fees, jury fees, Ford PMQ deposition expense, service expenses for both defendants, electronic filing expenses, Plaintiffs' allocated mediation expense, and an appearance-attorney expense for the trial-setting conference.

Ford did not file a noticed motion to strike or tax Plaintiffs' verified Memorandum of Costs. Instead, it challenged the requested costs in its opposition to the attorney-fee motion. California Rules of Court, rule 3.1700(b)(1), ordinarily requires an objection to a cost memorandum to be raised by a noticed motion filed and served within the prescribed period. Failure to challenge a cost bill through that procedure waives the objection. (*Tidrick, supra*, 112 Cal.App.5th at p. 1159; *Douglas v. Willis* (1994) 27 Cal.App.4th 287, 290.) Because Plaintiffs also seek the same costs and expenses through this noticed motion under Civil Code section 1794, subdivision (d), however, the Court's ruling is not based solely on waiver issue, but instead addresses Ford's objections on the merits.

When the items claimed appear proper on their face, a verified memorandum of costs constitutes prima facie evidence that the listed costs and expenses were necessarily incurred, and the burden rests on the objecting party to demonstrate that a particular item is improper or unreasonable. (*Oak Grove School Dist. v. City Title Ins. Co.* (1963) 217 Cal.App.2d 678, 698–699.) Ford does not identify any particular cost item that was unnecessary, excessive, or improper. It argues only that Plaintiffs did not attach invoices to the moving papers. Plaintiffs' verified memorandum and accompanying worksheet identify each category and amount, and the invoices submitted with the reply further corroborate those previously disclosed costs.

The filing, service, deposition, mediation, and appearance expenses were reasonably incurred in commencing, prosecuting, and resolving the action. Thus, the Court awards the full \$2,033.39.

RULING

For all the reasons stated above, the Court rules as follows:

GRANTS IN PART Plaintiffs Agustin Acosta and Malvin Guzman's motion for attorneys' fees, costs, and expenses.

AWARDS Plaintiffs attorneys' fees in the reduced amount of \$9,008.50.

DENIES Plaintiffs' request for a 1.3 lodestar multiplier.

AWARDS Plaintiffs costs and expenses in the amount of \$2,033.39.

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CIVSB2521996

DOE v. County

TENTATIVE RULING(S):

Before the Court is Defendant County of San Bernardino's Demurrer to Plaintiff's Complaint. Plaintiff opposes and Defendant replies.

Meet and Confer

Code of Civil Procedure sections 430.41 and 435.5 require, before filing a demurrer or motion to strike, the moving party must meet and confer in person, by telephone, by video conference with the party who filed the pleading in order to determine if an agreement can be reached to resolve the objections to the pleading. The parties must meet and confer at least five days before the responsive pleading is due, but if they are unable to do so, an automatic 30-day extension of time within which to file the responsive pleading will be granted by filing and serving a declaration on or before the date the response would be